FOURTH REGULAR SESSION

RESOLUTION NO. 251

RESOLUTION URGING THE BANGSAMORO GOVERNMENT THROUGH THE MINISTRY OF TRANSPORTATION AND COMMUNICATION TO CONDUCT A FEASIBILITY STUDY ON THE POSSIBLE ESTABLISHMENT OF AN INLAND WATERWAY TRANSPORT SYSTEM (IWTS) FOR THE LIGAWASAN MARSH AND OTHER WATERWAYS WITHIN MAGUINDANAO PROVINCE

WHEREAS, Section 3, Article V of Republic Act (RA) No. 11054 provides:

General Welfare – The Bangsamoro Government shall exercise the powers expressly granted, those necessarily implied therefrom, as well as powers necessary, appropriate, or incidental for its efficient and effective governance and those which are essential to the promotion of general welfare. Within its territorial jurisdiction, the Bangsamoro Government shall ensure and support, among other things, the preservation and enrichment of culture, promote health and safety, enhance the right of the people to a balanced ecology, encourage and support the development of appropriate and self-reliant scientific and technological capabilities, improve public morals, enhance economic prosperity and social justice, promote full employment among its residents, maintain peace and order, and preserve the comfort and convenience of its inhabitants;

WHEREAS, Section 2, Article V of RA 11054 provides:

Powers of the Bangsamoro Government - Subject to Section 20, Article X of the Constitution and this Organic Law, the Bangsamoro Government shall exercise its authority over the following matters without prejudice to the general supervision of the President of the Republic of the Philippines:

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(m) Creation of government-owned or controlled corporations and pioneer firms;

(n) Creation of resources of revenues;

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(hh) Inland waterways for navigation;

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WHEREAS, one study conducted by Engineer Labay entitled, "Inland Waterways Transportation System" which was conducted, among others, to contribute to the development of IWTS in Ligawasan Marsh towns, states that water transport is an essential sector in the socio-economic advancement of every region and nation. It provides cheap, efficient, safe, and environment-friendly transport services supporting agriculture and industry production. Hence, this can be a driving force leading to poverty alleviation and sustainable development;

WHEREAS, IWTS is generally acknowledged as a clean, safe, and the most energy-efficient mode of transport when compared to land-based systems which are often confronted with congestion and capacity problems;

WHEREAS, historically, the Bangsamoro people have inhabited riverbanks, swamps, seashores, and some afloat rivers and seas, and they have used inland waterways transport as their principal mode of transport, however, despite being surrounded by rivers, canals, lakes, and sea waters in the Bangsamoro area, until now, this potential remained largely underdeveloped due to a lack of dedicated transport policies and innovative investments;

WHEREAS, the IWTS has been the principal mode of transportation in the Ligawasan Marsh for several decades. However, there is no serviceable and efficient transport system developed in the area;

WHEREAS, the Municipalities of Buluan, Mangudadatu, Pandag, Paglat, General Salipada K. Pendatun, Sultan sa Barongis, Raja Buayan, Mamasapano, Datu Piang, Pagalungan, Datu Montawal, Northern Kabuntalan, Mother Kabuntalan, Talitay, Datu Salibo, Sultan Kudarat, Datu Odin Sinsuat, Cotabato City, and other rivers within the 63 barangays are the areas that will need improved inland water transport system;

WHEREAS, the establishment and improvement of an IWTS, which entails the creation of inland waterway terminals with reliable waterway networks, will potentially improve the livelihood of small fisher folks and will provide business opportunities to the people living adjacent to the Ligawasan Marsh and other rivers within the 63 Barangays. Furthermore, it will help develop the areas around the inland waters which are potential tourist attractions in the area;

WHEREAS, a feasibility study is necessary to be conducted in the recommended municipalities as there are areas that would require dredging, cleaning, and river expansion, as well as, the formulation of a proper system and policy of inland transport in the area:

NOW, THEREFORE, be it

RESOLVED, as it is hereby resolved by the Bangsamoro Transition Authority, To urge the Bangsamoro Government through the Ministry of Transportation and Communication to conduct a feasibility study on the establishment of an Inland Water Transport System for the Ligawasan Marsh and other rivers within Maguindanao, specifically the Municipalities of Buluan, Mangudadatu, Pandag, Paglat, General Salipada K. Pendatun, Sultan sa Barongis, Raja Buayan, Mamasapano, Datu Piang, Pagalungan, Datu Montawal, Northern Kabuntalan, Mother Kabuntalan, Talitay, Datu Salibo, Sultan Kudarat, Datu Odin Sinsuat, Cotabato City, and the 63 barangays, for the benefit of the people and the region.

RESOLVED, FURTHER, That a copy of this Resolution be furnished to the Office of the Chief Minister and the Ministry of Transportation and Communication of the Bangsamoro Autonomous Region in Muslim Mindanao, for their information.

ADOPTED, Dhu Al-Qa'dah 22, 1443/ June 21, 2022.

Certified Correct:

PROF. RABY B. ANGKAL
Secretary-General

Attested:

ATTY. PANGALIAN M. BALINDONG
Speaker

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